

Summary of Cover

Commercial Combined & Media Liability
15 Sections of Cover – Property, Liability,
Production & Media
Including new Management Liability and
Cyber sections



WORDING: TMHCC Media Combined 0526

SUMMARY OF COVER

Important notice / basis of this summary. This Summary of Cover is intended as a high-level guide only. It does not replace the policy wording, schedule, endorsements or any specific terms, conditions, exclusions, limits or excesses that apply. Cover is provided only for those Sections shown as operative in the Schedule and is subject in all respects to the full policy wording. You should read the policy, Schedule and any endorsements for full details of the terms and conditions. This Policy is a commercial insurance product designed for business customers and is not suitable for consumers.

WHO THIS POLICY IS DESIGNED FOR

The Media and Music Combined Insurance Policy 0526 is a non-consumer commercial package designed for businesses operating in the media, music, production, events and creative sectors (and associated commercial activities). It combines property, business interruption, liability, production, media and management/cyber covers in one policy, underwritten by Tokio Marine HCC (with Section 13 underwritten by ARAG and Section 15 provided under the CyberGuard™ wording).

HOW THIS POLICY IS STRUCTURED

The policy is made up of 15 Sections. General Policy Definitions, Conditions and Exclusions apply across the policy; each Section also has its own specialist definitions, extensions, conditions, exclusions and limits. Only the Sections shown as operative in the Schedule are in force, and all cover is subject to the sums insured, limits, sub-limits and excesses stated in the Schedule.

MAIN COVERS AT A GLANCE

Section	Cover provided	Basis
1 Business "All Risks" (Premises)	Property at the premises, incl. IT equipment & breakdown	Loss/Damage
2 Property & Equipment "All Risks"	Technical/production equipment & specified articles, worldwide	Loss/Damage
3 Business Interruption "All Risks"	Loss of income/increased cost of working after an Incident	Loss/Damage
4 Terrorism	Property damage & BI caused by Terrorism (if operative)	Loss/Damage
5 Employers' Liability	Injury/disease to employees	Liability
6 Public Liability	Injury/damage to third parties	Liability
7 Products Liability	Injury/damage caused by products	Liability
8 Money	Money loss & personal assault benefits	Loss/Benefit
9 Goods in Transit	Damage to goods in transit	Loss/Damage
10 Loss of Licence	Loss of trade value/profit on loss of licence	Loss
11 Production Indemnity "All Risks"	Production cost loss / interruption / abandonment	Loss/Damage
12 Media Liability	Defamation, IP, privacy & media liability	Claims-made
13 Commercial Legal Expenses	Legal costs for insured events (ARAG)	Claims-made
14 Management Liability	Directors', officers' & corporate liability	Claims-made
15 CyberGuard™ Cyber Liability	First & third-party cyber cover	Claims-made/Discovered

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SECTION 1 – BUSINESS “ALL RISKS” (PREMISES RISK ONLY)

Accidental physical loss of or damage to Buildings, Contents, Stock, Rent and Information Technology Property at the Premises on an “all risks” basis. Information Technology equipment and Breakdown cover (previously a standalone Information Technology section in the 0223C wording) is now incorporated within this Section.

What is covered – key features

- Day One Uplift and Capital Additions / Acquisitions
- Customers’ Goods; Removal of Debris and Fire Extinguishing Expenses
- Trace and Access; Drain Clearance; Replacement of Locks; Theft Damage to Buildings
- Temporary Removal and Transit; Exhibitions; Leased and Rented Premises
- Architects’, Surveyors’ and Engineers’ Fees; Inadvertent Omission to Insure; EU & Public Authorities
- Information Technology Property Breakdown plus Accidental Discharge, Additional Rental Charge, Expediting Costs, Incompatibility and Involuntary Betterment

Key conditions

- Minimum Security Requirements, Fire Protection & Detection, Security Devices and Unoccupancy conditions apply (some are conditions precedent to liability)

Key limitations & exclusions

- Excluded Causes and Excluded Property
- Wear, tear, gradual deterioration and similar gradually-operating causes
- Theft from unoccupied/unattended buildings and certain outdoor areas (restricted)
- Cover may be reduced or cease where the premises are Unoccupied
- Underinsurance: cover is subject to Average

Limits / sub-limits: As stated in the Schedule; settlement on Reinstatement or Indemnity basis as specified.

SECTION 2 – PROPERTY & EQUIPMENT “ALL RISKS”

“All risks” cover for Technical Equipment (musical instruments, sound, lighting, staging, projection, computer/IT equipment, audio-visual and broadcast equipment), Props, Sets and Wardrobe, stock/merchandise and Specified Articles within the Geographical Limits. This Section has been renamed and expanded (formerly “Production Property”) to absorb production property and technical / IT equipment.

What is covered – key features

- Technical Equipment and Artists’ Equipment (worldwide Geographical Limits)
- Transit and Exhibition extensions; Automatic Reinstatement
- Loan Property; Marine and Declared General Average; Customs Duty
- Brands and Labels; Involuntary Betterment
- Agreed Value, Reinstatement or Indemnity basis as shown in the Schedule

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Optional cover (if shown in the Schedule)

- Hired-in Property / Hired-out Property
- Technical Equipment Hired In / Hired Out
- Mechanical and Electrical Breakdown

Key limitations & exclusions

- Exclusions applicable to Technical Equipment, Props/Sets/Wardrobe and Specified Articles
- Property left in an unattended vehicle (subject to conditions)
- Valuables (jewellery, furs, precious metals/stones, works of art) over GBP 10,000 unless declared and accepted

Limits / sub-limits: Artists' Technical Equipment GBP 20,000 any one occurrence and in the aggregate; Declared General Average GBP 10,000 aggregate (Insured bears first 10%, min GBP 250); other limits as stated in the Schedule.

SECTION 3 – BUSINESS INTERRUPTION “ALL RISKS”

Loss of gross profit, gross revenue, rent receivable and increased cost of working following interruption of the Business by an insured Incident (i.e. damage covered under the property Sections).

What is covered – key features

- Denial of Access; Customers and Suppliers; Public Utilities
- Specified Illness and Miscellaneous Contingencies
- Alternative Trading; Automatic Reinstatement; Payments on Account
- Exhibition Loss of Expenses and Exhibition Sites; Professional Accountants

Optional cover (if shown in the Schedule)

- Contract Sites; Denial of Access (Non-Damage); Goods in Transit
- Public Utilities – Terminal Ends; Flexible Business Interruption Limit

Key limitations & exclusions

- Loss not resulting from an insured Incident is not covered
- Adjustments for trends and other circumstances apply
- Cover limited to the Indemnity Period stated in the Schedule

Limits / sub-limits: Gross profit/revenue sums insured, Indemnity Period and sub-limits as stated in the Schedule.

SECTION 4 – TERRORISM

Loss of or damage to Property Insured, and resulting Business Interruption, caused by an act of Terrorism within the Territorial Limits. Operative only if shown in the Schedule.

What is covered – key features

- Aligns with the Property and Business Interruption Sections
- Automatic Reinstatement

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Key limitations & exclusions

- Nuclear installations and reactors
- Cyber / Virus and Denial of Service attack
- War and related perils
- Burden of proof that loss is not excluded rests with the Insured

Limits / sub-limits: As stated in the Schedule.

SECTION 5 – EMPLOYERS' LIABILITY

The Insured's legal liability for bodily injury or disease sustained by Employees arising out of and in the course of the Business.

What is covered – key features

- Indemnity to Principals; Additional Insured Parties
- Criminal Prosecution Defence Costs; Data Protection Act cover
- Unsatisfied Court Judgments
- Health & Safety / Corporate Manslaughter defence costs (sub-limited)

Key limitations & exclusions

- Liability requiring compulsory motor insurance; offshore work
- Workers' Compensation; Asbestos (limited fire/explosion write-back)
- Terrorism

Limits / sub-limits: Limit of Indemnity as stated in the Schedule (minimum as required by the Employers' Liability (Compulsory Insurance) Act 1969). Criminal Prosecution Defence Costs GBP 250,000 (GBP 5,000,000 for manslaughter); certain extensions limited to GBP 250,000; asbestos fire/explosion write-back GBP 500,000.

SECTION 6 – PUBLIC LIABILITY

The Insured's legal liability to pay Compensation for accidental bodily injury to third parties and accidental loss of or damage to third-party property arising from the Business.

What is covered – key features

- Indemnity to Principals; Additional Insured Parties; Cross Liabilities
- Defective Premises Act 1972; Legionella Liability
- Custody or Control; Data Protection Act; Overseas Personal Liability
- Motor Vehicle Contingent Liability; Criminal Prosecution Defence Costs

Key limitations & exclusions

- Abuse; Advice and Professional Negligence; Products; Contractual Liability
- Asbestos; Pollution; Defective Workmanship; Medical Malpractice
- Vehicles, Vessels or Craft; Hazardous Activities

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- Worldwide jurisdiction unless agreed

Limits / sub-limits: Limit of Indemnity as stated in the Schedule. Custody/Control extension GBP 250,000 (GBP 2,500 excess each claim); other extensions sub-limited as stated.

SECTION 7 – PRODUCTS LIABILITY

The Insured's legal liability to pay Compensation for accidental bodily injury or property damage caused by products sold, supplied or distributed in the course of the Business.

What is covered – key features

- Criminal Prosecution Defence Costs; Cross Liabilities

Key limitations & exclusions

- Damage to Products Supplied; Defective Workmanship; North American Exports
- Asbestos; Pollution; Aircraft / Watercraft Products; Food and Drink
- Advice and Professional Negligence; Contractual Liability
- Worldwide jurisdiction unless agreed

Limits / sub-limits: Limit of Indemnity as stated in the Schedule; asbestos fire/explosion write-back GBP 500,000.

SECTION 8 – MONEY

Loss of Money in transit, on the premises and in safes or strongrooms (Sub-Section 1), together with Personal Assault benefits for insured persons following robbery or attempted robbery (Sub-Section 2).

What is covered – key features

- Loss of Keys
- Personal Assault benefits – death and disablement

Key conditions

- Money in transit must be accompanied by escorts according to value (GBP 2,000 / GBP 5,000 / GBP 10,000 thresholds; amounts over GBP 10,000 carried by a professional security company)

Key limitations & exclusions

- Shortage due to error or omission
- Breach of money-carrying / security conditions
- Failure to keep required records

Limits / sub-limits: Money and Personal Assault limits as stated in the Schedule.

SECTION 9 – GOODS IN TRANSIT

Damage to the Property Insured whilst in transit by any insured method of conveyance within the Geographical Limits.

What is covered – key features

- Tools and Samples; Clothing and Personal Effects

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- Tarpaulins, Sheets and Ropes
- Debris Removal, Trans-shipment and Recovery Charges

Key limitations & exclusions

- Excluded Property
- Failure to take reasonable precautions

Limits / sub-limits: Limit any one vehicle/sending and other limits as stated in the Schedule.

SECTION 10 – LOSS OF LICENCE

Loss in trade value or net profit following the forfeiture, suspension or refusal of renewal of the Insured's premises licence, other than for reasons within the Insured's control. Operative only if shown in the Schedule.

What is covered – key features

- Cover triggered on forfeiture, suspension or non-renewal of the Licence

Key limitations & exclusions

- Failure to comply with claims conditions
- Loss arising from replacement of the licensee

Limits / sub-limits: As stated in the Schedule.

SECTION 11 – PRODUCTION INDEMNITY “ALL RISKS”

Additional expenditure and Gross Production Cost loss incurred as a result of the interruption, postponement, cancellation or abandonment of an insured Production. Comprises a Multimedia Sub-Section (Damage to Property Insured) and a Producers Indemnity Sub-Section (any cause beyond the Insured's control).

What is covered – key features

- Agency and Talent Costs; Archive Material
- Automatic Reinstatement; Storage (up to 12 months)

Key conditions

- Conditions precedent include Production Planning, Duplicates, Rushes, Pre-Filming Testing, Processing (within 48 hours) and Full Value Declaration

Key limitations & exclusions

- Incapacity of persons due to hazardous acts, drugs/alcohol, age limits (<4 or >70) or pre-existing conditions
- Cancellation/abandonment due to weather; failure of equipment, effects or recordings to perform
- Software programming errors / design defects; failure to fulfil a contract; foot and mouth disease
- The Excess and Consequential Loss (as defined)

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Limits / sub-limits: Limit of Indemnity any one Production as stated in the Schedule; Agency and Talent Costs up to 25% / max GBP 30,000 any one Production.

SECTION 12 – MEDIA LIABILITY (CLAIMS-MADE)

Civil liability arising from the Insured's Media Business Services – including defamation, infringement of intellectual property and breach of confidentiality – written on a claims-made basis. Insuring clauses include Indemnity, Legal Defence Costs and Expenses, Rectification, Irrecoverable Fees, Data Protection Defence Costs, Reputation Management, Withdrawal of Content and intellectual-property pursuit costs.

What is covered – key features

- Joint Ventures; Indemnity to Principals; Mergers and Acquisitions
- Change of Control provisions
- Reputation Management and Withdrawal of Content
- Compensation for Court Attendance

Key limitations & exclusions

- Claims or circumstances known at inception
- Deliberate collection of private data without consent
- Bodily injury / property damage; Dishonesty and deliberate acts
- Contractual liability; Patents; Insolvency / bankruptcy; Fines and penalties
- Asbestos; Employers' liability and claims by Employees

Limits / sub-limits: Indemnity Limit as stated in the Schedule. Virus claims limited to the lower of the Schedule sum or GBP 500,000; Data Protection defence costs GBP 250,000; Reputation Management GBP 250,000; Withdrawal of Content GBP 250,000; IP pursuit costs GBP 25,000; court attendance GBP 500/GBP 250 per day.

SECTION 13 – COMMERCIAL LEGAL EXPENSES (ARAG)

Legal Costs and Expenses (including appeals and certain compensation awards) following an Insured Event – covering employment, employment compensation awards, restrictive covenants, tax disputes and related matters – together with access to legal, tax, redundancy and counselling helplines and identity-theft resolution. Underwritten by ARAG and operative only if shown in the Schedule.

What is covered – key features

- Freedom to choose an Appointed Advisor once proceedings are issued
- Legal and Tax advice helpline; Redundancy Assistance helpline
- Identity Theft Resolution; Counselling Assistance

Key conditions

- The claim must always have Reasonable Prospects of Success, arise within the Territorial Limit and be reported during the Period of Insurance and as soon as the Insured is aware

Key limitations & exclusions

- Matters without Reasonable Prospects of Success (a greater than 50% chance)

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- Matters arising before cover inception (incl. redundancy notified within 180 days of inception unless prior equivalent cover)
- Fraudulent claims or claims tainted by dishonesty
- Costs incurred without the insurer's consent; small claims below stated thresholds

Limits / sub-limits: Up to GBP 100,000 for all claims related by time or originating cause; aggregate GBP 1,000,000 for Employment Compensation Awards; certain Executive Suite events sub-limited to GBP 25,000.

SECTION 14 – MANAGEMENT LIABILITY (CLAIMS-MADE)

Directors', officers' and corporate management liability, written on a claims-made basis. Insuring clauses: A. Directors' and Officers' Liability; B. Company Reimbursement; C. Corporate Liability; and D. Company Employment Practice Liability. Operative only for the insuring clauses shown in the Schedule.

What is covered – key features

- Defence Costs and Investigation Costs
- Discovery Period; cover for Outside Directorships
- Non-Executive Director extra limit; Management Buy-Out
- Civil Fines and Penalties (where insurable); Corporate Manslaughter and Corporate Bribery defence; New Subsidiaries; Emergency Costs
- Employment Practice Liability cover

Key conditions

- Claims and circumstances must be notified in accordance with the Section's own Notification and Claims Conditions

Key limitations & exclusions

- Prior and pending claims / known circumstances
- Dishonest, fraudulent or criminal conduct (once established)
- Bodily injury and property damage; Pollution
- Insured v Insured claims (subject to carve-backs)
- Loss exclusions (taxes, employment-related benefits, severance/redundancy, sums not legally insurable)

Limits / sub-limits: Limit of Liability per insuring clause as stated in the Schedule; Jurisdiction worldwide excluding USA/Canada unless stated otherwise in the Schedule.

SECTION 15 – CYBERGUARD™ (CYBER LIABILITY)

First-party and third-party cyber cover, written on a claims-made / discovered basis and subject to a Retroactive Date. Third-party insuring clauses: Multimedia Liability; Security and Privacy Liability; Privacy Regulatory Defence and Penalties; PCI DSS Liability; and Bodily Injury and Property Damage Liability. Operative only for the insuring clauses shown in the Schedule.

What is covered – key features

- First-party: Breach Event Costs and BrandGuard

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- First-party: System Failure and Data Recovery
- First-party: Non-Physical Business Interruption (subject to a Waiting Period)
- First-party: Cyber Extortion and Cyber Crime (Financial, Phishing, Telecommunications and Utilities Fraud)
- First-party: Bricking Loss; Reward Expenses; Court Attendance Costs (up to GBP 500 per day)

Key conditions

- Cyber Extortion Monies require the insurer's prior written consent and the Police must be notified before any payment; first-party covers require discovery by an Executive during the Period of Insurance

Key limitations & exclusions

- War and failure of core infrastructure
- Bodily injury and property damage (save where specifically written back)
- Prior known incidents or circumstances
- Betterment / upgrade costs

Limits / sub-limits: Up to the Cyber Limit of Liability stated in the Schedule; sub-limits, Waiting Periods, Periods of Restoration and Retroactive Date apply as stated.

GENERAL POLICY EXCLUSIONS (APPLY ACROSS SECTIONS 1–11)

The following General Policy Exclusions apply unless a Section states otherwise. Sections 13, 15 (and any Section 16) carry their own exclusions which prevail for those Sections:

- Communicable Disease (not applicable to EL/PL/Products)
- Contribution (where other insurance applies)
- Coronavirus / Covid-19 (added to Public and Products Liability where shown in the Schedule)
- Date Recognition; Excess; Fines and Penalties
- Northern Ireland (riot/civil commotion – specified Sections)
- Nuclear; Pollution (specified Sections; limited Production Property write-back to GBP 500,000)
- Property Cyber and Data Endorsement – excludes Cyber Loss and loss of/ damage to Data, with limited write-backs for ensuing fire/explosion and the cost of repairing data-processing media
- Sonic Bang; Terrorism (non-Terrorism Sections); War & Kindred Risks

KEY CONDITIONS AND CLAIMS OBLIGATIONS

- Notification of a claim is a Condition Precedent to liability – the Insured must notify as soon as practicable (Sections 1–11).
- Notification to the Police following theft, attempted theft or malicious damage is a Condition Precedent.
- No admission of liability, offer, settlement or payment may be made without the insurer's written consent.
- The Insured must take reasonable steps to mitigate loss and to maintain protections/security.

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- Property Sections are subject to Protection & Maintenance conditions (fire protection, minimum security, intruder alarm and unoccupancy) – several are conditions precedent.
- Sections 12–15 operate on a claims-made basis and have their own notification and claims conditions (e.g. 28-day notification for Media and Production Indemnity; separate notice provisions for Management Liability and Cyber).
- Cover is subject to Average (underinsurance) and to payment of premium.

LIMITS, SUB-LIMITS AND EXCESSES

Principal limits and sub-limits referenced in the wording are summarised below. All sums insured, limits of indemnity and excesses are as stated in the Schedule, which prevails.

Cover / item	Limit or sub-limit	Notes
Section 2 – Artists' Technical Equipment	GBP 20,000	Any one occurrence & aggregate
Section 2 – Declared General Average	GBP 10,000 aggregate	Insured bears first 10%, min GBP 250
Valuables (undeclared)	GBP 10,000	Unless declared and accepted
Criminal Prosecution Defence Costs (EL/PL)	GBP 250,000	GBP 5,000,000 for manslaughter
Asbestos fire/explosion write-back (EL/Products)	GBP 500,000	Bodily injury from fire/explosion
Public Liability – Custody/Control	GBP 250,000	GBP 2,500 excess each claim
Pollution write-back (Production Property)	GBP 500,000	Where applicable
Section 11 – Agency & Talent Costs	GBP 30,000	Up to 25%, any one Production
Section 12 – Virus claims	Lower of Schedule sum or GBP 500,000	Any one originating cause
Section 12 – Data Protection / Reputation / Withdrawal	GBP 250,000 each	As specified
Section 12 – IP pursuit costs	GBP 25,000 aggregate	
Section 13 – Legal Expenses	GBP 100,000 per claim	GBP 1,000,000 agg. employment compensation
Section 15 – Court Attendance Costs	GBP 500 per day	
All other limits / sums insured / excesses	As per Schedule	Schedule prevails

OPTIONAL COVERS AND ENDORSEMENTS

- Sections 4 (Terrorism), 10 (Loss of Licence), 13 (Legal Expenses), 14 (Management Liability) and 15 (Cyber) are operative only if shown in the Schedule.
- Section 2 optional covers: Hired-in / Hired-out property and Mechanical & Electrical Breakdown.
- Section 3 optional extensions: Contract Sites, Non-Damage Denial of Access, Goods in Transit, Public Utilities Terminal Ends and Flexible Business Interruption Limit.
- Coronavirus / Covid-19 exclusion is applied to the liability Sections where shown in the Schedule.

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WHAT IS NOT COVERED (SUMMARY)

In addition to each Section's own exclusions, the policy does not cover (among other things): communicable disease and Covid-19 (as applicable); cyber loss and loss of data (property Sections); war, terrorism (outside the Terrorism Section) and nuclear risks; pollution (outside limited write-backs); wear, tear and gradual deterioration; the Excess; fines, penalties and punitive damages (save where expressly insured); and deliberate, dishonest or criminal acts. This list is not exhaustive – refer to the wording.

CLAIMS NOTIFICATION SUMMARY

- Property, BI, Liability, Money, Transit and Loss of Licence (Sections 1–11): notify as soon as practicable – Claims, Tokio Marine HCC, mail@tmhcc.com, Tel +44 (0)20 7702 4700.
- Media Liability and Production Indemnity (Sections 12–13 PI route): notify within 28 days – PI Claims, piclaims@tmhcc.com.
- Commercial Legal Expenses (Section 13): claims handled by ARAG – report during the Period of Insurance and as soon as the Insured is aware.
- Management Liability and Cyber (Sections 14–15): notify in accordance with the Section's own notice provisions, during the Period of Insurance (or Discovery Period where applicable).
- Theft, attempted theft or malicious damage must also be reported to the Police (condition precedent).

IMPORTANT BROKER / INSURED NOTES

- This summary must be read together with the policy wording, Schedule and any endorsements, which together set out the cover, limits, sub-limits, excesses and conditions that apply.
- Only the Sections shown as operative in the Schedule are in force.
- Several Sections are written on a claims-made basis – timely notification is essential and is a condition precedent in many cases.
- Check sums insured and limits carefully – the policy is subject to Average (underinsurance).
- This is a non-consumer commercial contract and is not suitable for consumers.

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